



File No.: EXP202316815

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on October 11, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 11, 2023, a complaint was received by this Agency filed by Mr. A.A.A. on behalf of Mr. B.B.B. (hereinafter, the complainant) against GOOGLE LLC (hereinafter, the respondent) for not having duly addressed his right to object to and delete his personal data.

The complainant states that, on April 19, 2023, the respondent confirmed receipt of the request for deletion of personal data from the search engine, requesting the removal of the result lists for the following links resulting from the search conducted by his name and surname:

1. ***URL.1
2. ***URL.2
3. ***URL.3
4. ***URL.4

Regarding the reason for the removal, he states that "All the selected pages are related to B.B.B. and refer to events from 2013, which are outdated, and the information pertains to (...) causing harm to his current job search."

He points out that, since the receipt of this request by the respondent, more than five months have passed without the requested data being deleted or receiving a motivated response denying the request.

He argues that, after entering his name and first surname in the search engine, the following URLs or internet addresses continue to be indexed:

- ***URL.2
- ***URL.4
- ***URL.1
- ***URL.5
- ***URL.6
- ***URL.7
- ***URL.8

He indicates that all the internet addresses mentioned reflect events related to a dismissal from a position in a private association, ***ASSOCIATION.1, the events of which correspond to February 2013, having passed more than ten years since they occurred. Therefore, he asserts that the requested data should be deleted, as the processing is not necessary for the exercise of freedom of expression and information, for compliance with a legal obligation, for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred on the responsible person, for reasons of public interest, in the field of public health, for public interest archiving purposes, for scientific or historical research purposes, or for statistical purposes, or for the formulation, exercise, or defense of claims.

He concludes by stating that the failure to delete the indicated data is causing him direct harm in accessing the job market, and in his opinion, there is no other superior right that prevents the recognition of the deletion of the data subject to this complaint.

SECOND: On November 26, 2023, the complaint was forwarded to the respondent entity, which submitted a written response on December 29, 2023, through which, among other issues, it stated the following:

"As noted in the administrative file, Mr. B.B.B. contacted Google LLC on April 19, 2023, to exercise his right to deletion concerning four URLs, which he claimed appeared among the results of the Google search engine when conducting a query based on his name. By email dated April 19, 2023, Google LLC requested additional information from the interested party to assess his request. (...)

Furthermore, we must clarify that, in his complaint to the AEPD, Mr. B.B.B. transcribes four URLs regarding which, unless we are mistaken, he has never exercised a right of deletion. Nor does he provide any evidence in his complaint of having exercised a right against Google LLC regarding those four URLs. Consequently, regarding these URLs, the absence of a prior complaint is sufficient by itself for the inadmissibility of the complaint against Google LLC, in application of Article 65.2 of the LOPDGDD. Indeed, the prior exercise of the right to deletion or opposition before the entity considered responsible for the processing is an unavoidable requirement to seek the protection of the Agency. (...) Without prejudice to the above, Google LLC will evaluate any new request it receives from Mr. B.B.B. that meets the procedural requirements established in the applicable legislation, as interpreted by the AEPD and Spanish courts. (...)

Google LLC has re-examined Mr. B.B.B.'s request and, regarding two of the URLs subject to his complaint, has verified that as of today, those URLs do not even appear among the results of the Google search engine when conducting a search for

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starting from the name of the interested party. Nor has the interested party demonstrated that the disputed URLs appear among the results of the Google search engine when conducting a search based on their name, as was their burden."

SECOND: The present authority, taking into account such circumstances, by resolution dated January 16, 2024, proceeded to archive the complaint, based on the following legal arguments:

"(...) Applying the criteria set forth to the case at hand, it must be concluded that the information processed pertains to the professional life of the complaining party, and cannot be considered outdated, therefore, the right to data protection must yield to the freedom of expression and information and to the interest of internet users in knowing the information, given that the complaining party has not alleged personal circumstances that demonstrate that their rights should prevail.

(...) In this case, considering that the complaint was filed with this Agency on October 11, 2023, pursuant to the provisions of section 5 of article 65 of the LOPDGDD, it should be processed in accordance with the provisions of Title VIII of the aforementioned regulation, without prejudice to the Agency's authority to subsequently and expressly archive the complaint.

However, once the reasons presented by the responding party, which are in the file, have been analyzed, it is considered that the dismissal of the request made is in accordance with the personal data protection regulations, and it is not necessary to urge the adoption of additional measures as the duty to respond provided for in article 12.4 of the LOPDGDD has been fulfilled, therefore, in view of the actions taken, the archiving of the filed complaint is appropriate.

All of this, without prejudice to any possible actions regarding the data processing referred to in the complaint that this Agency may carry out, applying the investigative and corrective powers it holds.

For all the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED: (...) TO ARCHIVE the complaint."

THIRD: Dissatisfied with the resolution, on February 23, 2024, the complaining party filed a motion for reconsideration arguing, among other things, the following statements:

"That from the very content of the links whose removal has been requested, personal elements can be directly inferred that go beyond a simple communication and information about a dismissal, expressing phrases such as "that they did not behave well"

***URL.1

That this added element, to what would be a news report informing of a dismissal or termination, is what causes a disproportionate harm, being a private individual in the private sphere and also considering the time elapsed since the publication of the news.

(...) That considering that the will of the appellant is not to initiate any sanctioning procedure against Google Spain SI, nor to claim damages and in order to avoid a judicial procedure, we present this appeal to satisfy the exercise of the right to erasure, being able to assess the complaint made, as we are not only dealing with professional information, but also from the very content of the links for which the removal is requested, personal elements can be inferred, as well as the time elapsed since publication, exceeding more than double the time established in the ruling of the National Court, cited in the resolution, in order to assess whether it should continue to be of general interest (the National

Court, in its ruling dated November 8, 2017, (...)

FOURTH: In response to this filing, on June 14, 2024, the present authority issued a resolution on the motion for reconsideration presented, proceeding to partially uphold it based on the following arguments:

"Having established the above, the responding party has stated in response to the action of transfer and request for information made by this AEPD that "as recorded in the administrative file (...) by email dated April 19, 2023, Google LLC requested additional information from the interested party in order to assess their request." (...)

Reviewed the administrative file, it is verified that there is only reference to the response given by the responding party in the transcription made in the initial complaint of the appellant which states the following:

"Thank you for contacting us.

We have received your request, which has been added to our queue. We will process it as soon as possible, as our workload allows. We may contact you if we need more information to understand and process your request. (...)"

Additionally, the responding party has stated, in response to the hearing procedure of the present optional motion for reconsideration, that the content of the information published in the disputed URLs by two media outlets refers to the professional life of the appellant, informing about the termination of the employment relationship with a private entity.

Consequently, in accordance with the reasoning provided, it should be specified that we are dealing with information that faithfully reflects what was published at a given moment, of which it has not been proven that it is not truthful, and that does not refer to the personal or family private life of the appellant, but to their professional activity, therefore, the right to freedom of expression and information regulated in article 20 of the Spanish Constitution prevails.

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However, it has not been established that the required response that the respondent should have directed to the appellant was sent. Thus, Article 12.4 of the LOPDGDD states that "the burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party shall fall on the responsible party." Therefore, the partial acceptance of the appeal filed is warranted due to the lack of response to the exercise of the right to erasure of the four URLs claimed in the request submitted by the appellant on April 19, 2023, justifying or dismissing the claim.

Based on these arguments, the dispositive part of the resolution concluded as follows:

"PARTIALLY ACCEPT the appeal for reconsideration filed by B.B.B. against the resolution of this Agency issued on January 16, 2024, which agreed to archive the complaint regarding GOOGLE LLC, in order for it to continue processing to provide an express response to the exercise of the right to erasure/right to be forgotten submitted by B.B.B. on April 19, 2023."

FIFTH: As a consequence of the partial acceptance of the aforementioned appeal for reconsideration, the present rights procedure was opened, transferring the documentation to the respondent, so that within ten working days it could present the allegations it deemed appropriate. It proceeded to submit its response in writing on July 15, 2024, stating, in summary, the following:

- That the claimant had not addressed Google LLC regarding the four indicated search results.
- That one of the URLs intended to be blocked does not appear among the results provided by the search engine when searched by its name, while the remaining three URLs refer to information related to the professional life of Mr. B.B.B.
- Finally, it invokes the processing as necessary to exercise the right to freedom of expression and information.

SIXTH: Once the document submitted by the respondent was examined, it was transferred to the claimant, so that, within ten working days, it could formulate the allegations it considered appropriate.

On July 24, 2024, a submission was received from the claimant stating, in summary, the following:

- That the request for data erasure was made through the only form that the company has available in Spanish, with no other means to address Google Spain SL or Google LLC.
- That if one of the URLs intended to be blocked does not appear among the results, it would not be

necessary to exercise the right to erasure over that URL, leaving the other three requested URLs pending, as long as that situation remains permanent.

- That from the very content of the links whose erasure has been requested, personal elements are directly derived that exceed a simple communication and information of a dismissal, causing a disproportionate harm, especially considering the time elapsed since the publication of the news.
- That the right to freedom of expression and information should be connected with the long time elapsed since the news (over 10 years) along with the existence of personal elements that transcend professional information, understanding that in this case, the right to erasure of the requested data should prevail.

SIXTH: After granting the respondent another opportunity to respond to such statements, in a document submitted on August 5, 2024, it reiterated, in summary, the following:

- It reiterated that the claimant had not addressed Google LLC regarding the four search results.
- It also pointed out again that one of the URLs does not appear among the results provided when conducting the search.
- It states, however, that it has blocked the URLs subject to the complaint: Finally, Google LLC has re-examined the content of the web pages to which the two remaining search results subject to the complaint of Mr. B.B.B. refer and has reconsidered its initial decision. Consequently, Google LLC has proceeded to block the request made by Mr. B.B.B.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in its Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding the...

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obligations that fall upon them, as well as addressing the claims presented by an interested party and investigating, as appropriate, the reasons for such claims.

In the case at hand, the initiation of this procedure arises from a partial estimate due to the failure to expressly respond to the request for deletion made by the claiming party, in accordance with the provisions of Article 64.1 of the LOPDGDD, which states:

"When the procedure exclusively concerns the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. Once this period has elapsed, the interested party

may consider their claim to be accepted.”

In this regard, Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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On the other hand, it must be taken into account that the party being claimed against must only examine those URLs that have been expressly requested by the claiming party, and cannot deduce such a request from the claim submitted to the present authority. In this regard, the Judgment of the National Court dated 25/10/2022, appeal: 334/2021, considers it necessary for the applicant to identify the links on which they intend to exercise the right to be forgotten.

It should be noted that Article 93 of the LOPDGDD, concerning the right to be forgotten in internet searches, which complements the provisions of Article 17 on the right to erasure (the right to be forgotten) of the GDPR, establishes in its section 1: "1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search carried out based on their name the published links that contained information relating to that person when they were inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information.

Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the search engine service on the Internet (...)."

Consequently, the identification of the links on which the right to be forgotten is intended to be exercised and the information that affects the interested party constitutes a basic prerequisite for carrying out the corresponding balancing judgment of the interests at stake.

IV

Right to be Forgotten

The right to be forgotten is contemplated in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, concerning the right to be forgotten in internet searches, which determines, in its section 1, the following:

"1. Everyone has the right for search engines on the Internet to remove from the lists of results

obtained from a search carried out based on their name the published links that contained information relating to that person when they were inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, action must be taken when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the search engine service on the Internet.

This right will persist even when the retention of the information published on the website to which the link directed was lawful and it was not previously or simultaneously deleted."

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As stated in the Judgment of the Supreme Court of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from the respect for other fundamental rights are applicable, among which the freedom of information proclaimed by Article 20 of the Constitution is of special relevance."

Regarding the nature of the search engine as a data controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and offers the user a list of web addresses that refer to pages containing the words selected by the user. Consequently, the processing of personal data carried out by the manager of a search engine allows for a "name" to yield a list of results that provide information about a person that may affect their private sphere. Once the interested party has submitted their request for the deletion of their personal data to the search engine, it must examine it and proceed, if applicable, to delete the specific links from the list of results, without the need to first or simultaneously approach the responsible party of the website.

Furthermore, it can also be inferred from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

In the case at hand, as can be inferred from the content of the resolution of the optional appeal for reconsideration, the party being claimed did not proceed to address the request made by the claiming party. Although there is a response from the claimed party to said request, it is limited to indicating that it would be addressed as soon as possible:

"Thank you for contacting us.

We have received your request, which has been added to our queue. We will process it as soon as possible, as soon as our workload allows."

It should be noted that, regardless of the weighing carried out by the claimed party to deny or accept the request for deletion, it must be addressed expressly and within the timeframe indicated by the regulations. Otherwise, even if there are justified grounds for denial, the requested right cannot be considered addressed. Based on these premises, it is possible to affirm that the claimed party did not address the right by failing to respond with reasoning to the denial or acceptance of the deletion of data within the one-month period required by the regulations.

V

Conclusion

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For the reasons stated, in the case analyzed here, the claimant exercised their right to erasure concerning the URLs transcribed in their complaint, and after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response, as

their right was not addressed through an express reply either denying or accepting it. As previously indicated, this right can only be addressed concerning the URLs explicitly mentioned in the request submitted by the claimant. It is worth noting that the aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue. This response must be provided even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of the request is also obliged to require the rectification of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

In summary, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the respondent has provided documentation evidencing the attention to the right. In the last submission of allegations, they stated that they had re-examined the content of the web pages to which the two remaining search results refer and have reconsidered their initial decision proceeding to block as requested by the claimant.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as an administrative procedure. Therefore, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to estimate for formal reasons the failure to provide a response to the claimant regarding their request, proceeding to require the respondent to certify such communication.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons, the complaint filed by B.B.B. considering that the provisions of Article 15 of the GDPR have been infringed and to urge GOOGLE LLC, to send the claimant a certification addressing the requested right within ten working days following the notification of this resolution, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to B.B.B. and GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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